

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yanjiao Chen	Team: Team # 3	CCRB Case #: 201306601	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/16/2013 7:35 PM	Location of Incident: § 87(2)(b) between § 87(2)(b) and § 87(2)(b)	Precinct: 73	18 Mo. SOL 1/16/2015	EO SOL 1/16/2015	
Date/Time CV Reported Mon, 07/22/2013 3:32 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/22/2013 3:32 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM George Allen	06387	944517	073 PCT
2. POM Joseph Mcevoy	14582	944790	073 PCT
3. POM Andrew Kamna	24865	943423	073 PCT
4. Officers			073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT James Grillo	2504	922454	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Andrew Kamna	Discourtesy: PO Andrew Kamna spoke rudely to § 87(2)(b)	§ 87(2)(b)
B.POM Andrew Kamna	Off. Language: PO Andrew Kamna made remarks to § 87(2)(b) based upon race.	§ 87(2)(b)
C.POM Andrew Kamna	Abuse: PO Andrew Kamna searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)
D.POM George Allen	Abuse: PO George Allen searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)
E. Officers	Abuse: Officers damaged § 87(2)(b)'s property.	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On July 22, 2013, § 87(2)(b) filed this complaint with the CCRB via telephone.

On July 16, 2013, at around 7:35 p.m., § 87(2)(b) was driving with § 87(2)(b) He turned onto § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn when he was stopped by PO Andrew Kamna, PO George Allen, and PO Joseph McEvoy of the 73rd Precinct. The following allegations occurred as a result:

Allegation A: Discourtesy – PO Andrew Kamna spoke rudely to § 87(2)(b)

Allegation B: Offensive Language – PO Andrew Kamna made remarks to § 87(2)(b) based upon race.

§ 87(2)(g)

Allegation C: Abuse of Authority – PO Andrew Kamna searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation D: Abuse of Authority – PO George Allen searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

Allegation E: Abuse of Authority – Officers damaged § 87(2)(b) s property.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black man, who is 6' tall, weighs 168 pounds, and has a bald head and brown eyes.
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on August 5, 2013 (enc. C-2 – C-6). § 87(2)(g)

§ 87(2)(g)

On July 16, 2013, at around 7:35 p.m., § 87(2)(b) was driving on § 87(2)(b) from his apartment with § 87(2)(b) in the passenger seat. § 87(2)(b) is § 87(2)(b)'s girlfriend. When he turned left onto § 87(2)(b) he saw a black Impala with flashing lights, and immediately pulled over, turned off the car, and put the car keys on top of roof. PO Andrew Kamna of the 73rd Precinct, who was identified via the investigation, and who § 87(2)(b) described as a slim white man, around 5'11" tall, mid-30 years old, with no facial hair, arrived alone at § 87(2)(b)'s side of the vehicle, and asked for his license and registration. § 87(2)(b) provided the information, and explained that this car was a rental auto. PO Kamna stated that he did not care. He took a few steps towards the back of the car before suddenly returning to § 87(2)(b)'s door and saying "Get the fuck out of the car." PO Kamna's hand was on his gun, but did not draw his weapon. § 87(2)(b) and § 87(2)(b) were both startled by the profanity and did not react to the command at first. PO Kamna then said "I said get out of the car nigger," and opened the car door.

The minute § 87(2)(b) exited his vehicle, PO Kamna pushed him back first against the car with his right forearm and searched § 87(2)(b)'s right pants pocket to find a barber's shaving blade. The blade is about an inch and a half long, and folds into the handle. § 87(2)(b) explained to PO Kamna that he is also a barber, and just finished cutting his friend's hair, and had not realized that the blade was on him. PO Kamna switched to pushing § 87(2)(b) with his left forearm, and searched § 87(2)(b)'s left pants pocket. PO Kamna responded by saying "Just get the fuck to the back of the car." § 87(2)(b) complied and was standing at the back of the car when PO George Allen and PO Joseph McEvoy of the 73rd Precinct, who were both identified via the investigation, exited the police vehicle. PO Allen, who § 87(2)(b) described as a muscular black man, with sleeve tattoos, in his late 20s, approached the passenger side of § 87(2)(b)'s vehicle, after which § 87(2)(b) stepped outside. § 87(2)(b) did not hear their interaction. PO McEvoy, who § 87(2)(b) described as a slim white man, about 6'1" tall, with glasses and no facial hair, and in his late 20s, stood by § 87(2)(b) at the back of the vehicle, and commanded the latter to turn around. Before turning around, § 87(2)(b) saw PO Kamna and PO Allen search the inside of his car, with PO Kamna inside the front driver's seat, and PO Allen inside the front passenger seat.

After 3-5 minutes of standing at the back, PO Allen approached § 87(2)(b) and asked "is there anything in the car that you want to tell me that I need to know." § 87(2)(b) denied such, and responded that he was "going to drop a cooler off for a friend, and get something to eat." § 87(2)(b) explained during his interview that the cooler was filled with alcoholic drinks he had made for a friend. The drinks were sealed in small plastic containers, and concealed in the cooler.) PO Allen replied "Well, one of you gotta go to jail, there's a knife in the car." That was when § 87(2)(b) recalled that one of his friends had left a work knife in the car, behind the front passenger seat. § 87(2)(b) could not recall its exact location inside the car. The knife was in a leather shelf, and § 87(2)(b) had not even seen it but was informed by his friend that it had been left in the car. PO Allen said "well you gotta get arrested because we're out here for knives and guns." § 87(2)(b) felt "forced" to confess that the knife was his, and did so, in spite of the truth. PO Allen then handcuffed § 87(2)(b) and led him to the police vehicle.

PO McEvoy drove § 87(2)(b)'s car to the 73rd Precinct stationhouse, where § 87(2)(b) retrieved it. Once retrieved, § 87(2)(b) saw that the car interior had been completely ravaged. § 87(2)(b)'s American flag and Bible had been ripped and his headphones broken.

Photographs

§ 87(2)(b) and § 87(2)(b) provided the investigator with a number of photographs depicting the alleged property damage that were taken on July 17, 2013. Only a few photographs were selected to be incorporated in the case file (enc. C-4.1 – C-4.3), as a number of them are redundant.

In photo # 1, a GPS mount and screen can be seen lying amidst a pile of other papers and knick-knacks. In photo # 2, the front seats of the car and the front area appear to be in normal condition. In photo # 3, there are items strewn across the rear seats, and a ripped American flag is evident. Photo # 4 is a picture of § 87(2)(b)'s car from the front, with the front right door opened. There appears to be no damage to the exterior of the vehicle. Photo #5 is a close up of what appears to be a scratch of the vehicle's exterior, and a reflection of § 87(2)(b) taking the photo.

Witness: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. She is a black woman who is 5'7" tall, weighs 122 pounds, and has brown hair and brown eyes.

- § 87(2)(b)
§ 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on August 5, 2013 (enc. D-1 – D-5). § 87(2)(g)

After discovering the barber's blade in one of § 87(2)(b)'s pants' pockets, PO Kamna did not want to listen to § 87(2)(b)'s explanation and commanded § 87(2)(b) to stand by the back of the vehicle. § 87(2)(b) also heard PO Kamna call § 87(2)(b) "nigger" at some point during the beginning of this interaction.

As § 87(2)(b) walked to the rear of the vehicle, PO Allen came over to § 87(2)(b) and said "ma'am, step out of the car." § 87(2)(b) complied and stood about five inches away from the right side of the vehicle towards the rear. She was not standing next to § 87(2)(b). PO McEvoy was standing at the back of the car with § 87(2)(b). § 87(2)(b) observed PO Kamna search through all of the car seats, and go into the glove compartment. PO Allen only searched the passenger side of the vehicle (the front and back).

Afterwards, PO Allen stepped back and stated that a knife was found, and either § 87(2)(b) or § 87(2)(b) had to be arrested for it. § 87(2)(b) then remembered that one of his friends had left his work knife in the back of the vehicle. However, PO Allen did not care about any explanation and stated that someone had to be arrested for it. Thus § 87(2)(b) was "forced" into falsely confessing that the knife was his. PO Allen handcuffed § 87(2)(b) and led him to the police vehicle. During the entire incident, PO Kamna and PO Allen had their hands on their guns. § 87(2)(b) was responding in a calm tone of voice, and was very receptive.

PO McEvoy drove § 87(2)(b)'s car back to the stationhouse. When § 87(2)(b) retrieved the car, the entire interior was in shambles. Everything was thrown around, with the cup holders and § 87(2)(b)'s headphones broken. § 87(2)(b) did not witness any of the property damage occur at the scene, it was only after she retrieved it from the stationhouse that she saw any damage to the car.

NYPD Statements:

Subject Officer: PO GEORGE ALLEN

- PO Allen was § 87(2)(b) old at the time of the incident. He is a black man, who is 5'8" tall, weighs 190 pounds, and has black hair and brown eyes.
- On July 16, 2013, PO Allen worked between the hours of 2 p.m. and 10:35 p.m. He was dressed in plainclothes, assigned to anti-crime, and inside an unmarked vehicle. Although PO Allen could not recall who his partners were that day, the investigation determined that he was working with PO Andrew Kamna and PO Joseph McEvoy.

Arrest Report

PO Allen stated verbatim in § 87(2)(b)'s arrest report (arrest number § 87(2)(b) that "§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Memo Book

PO Allen's memo book entries pertaining to this incident (enc. E-1 – E-2) state verbatim that "at 7:48 p.m., crime arrest of § 87(2)(b) § 87(2)(a) 160.50
§ 87(2)(b)

CCRB Statement

PO George Allen was interviewed at the CCRB on September 11, 2013 (enc. E-3 – E-4).

On July 16, 2013, at around 7:35 p.m., PO Allen observed § 87(2)(b) make a left turn from § 87(2)(b) onto § 87(2)(b) without signaling. PO Kamna and PO McEvoy also observed this infraction and verbally conferred with each other about stopping § 87(2)(b). Police lights were turned on to stop § 87(2)(b)'s vehicle. PO Allen was not driving but approached the driver's side of § 87(2)(b)'s vehicle behind PO Kamna.

Upon approaching § 87(2)(b)'s vehicle, PO Allen immediately saw a dagger in plain view, although he could not recall where the dagger had been located inside the vehicle. The dagger was longer than four inches and appeared to be a weapon, therefore § 87(2)(b) was immediately considered to be under arrest at that point. PO Kamna had asked § 87(2)(b) for his license and registration, which § 87(2)(b) provided. At no point during PO Kamna and § 87(2)(b)'s interaction did PO Allen hear either party use any profanity, or hear PO Kamna say "nigger". § 87(2)(b)'s demeanor was calm and his tone of voice never became loud. PO Allen asked § 87(2)(b) to step out of the vehicle, and searched him. He found a straight blade which § 87(2)(b) attributed to his being a barber. § 87(2)(b) then "spontaneously uttered" that he sold "nutcrackers," a type of alcoholic concoction. Afterwards, PO Allen handcuffed him.

PO Allen went inside § 87(2)(b)'s vehicle to observe the cooler's contents and take a photo of them for property voucher purposes, but did not go into any other part of the vehicle or into the trunk. § 87(2)(b) had a cooler full of "nutcrackers" in his back seat. During this time, PO McEvoy had been interacting with § 87(2)(b) on the passenger side.

§ 87(2)(b)'s vehicle was taken to the 73rd Precinct stationhouse, it was not vouchered but PO Allen did search it. There was nothing abnormal with the interior condition of the car besides being slightly messy. PO Allen performed a simple search, looking under and around all the seats for any possibility of a weapon. He never took the seats out or used any tools to perform

the search, nor did he damage any property. § 87(2)(b) was ultimately never summonsed for failing to signal when making a turn, although PO Allen did not know why.

Subject Officer: PO ANDREW KAMNA

- PO Kamna was § 87(2)(b) old at the time of the incident. He is a white man, who is 5'9" tall, weighs 140 pounds, and has brown hair and brown eyes.
- On July 16, 2013, PO Kamna worked between the hours of 2 p.m. and 10:35 p.m. He wore plainclothes, drove in an unmarked vehicle, and was assigned to the 73rd Precinct's anti-crime unit.

Memo Book

PO Kamna did not have any memo book entries pertaining to this incident (enc. F-1 – F-2).

CCRB Statement

PO Andrew Kamna was interviewed at the CCRB on October 9, 2013 (enc. F-3 – F-4).

§ 87(2)(g)

Upon approaching the driver side, PO Allen signaled to PO Kamna. PO Kamna could not describe this signal, but explained that it prompted him to ask § 87(2)(b) to exit the vehicle. PO Kamna did not know at the time that PO Allen was signaling about a knife in the car. He only discovered later on that the signal was related to a weapon.

PO Kamna commanded § 87(2)(b) to exit the vehicle and brought § 87(2)(b) to the back of the vehicle. § 87(2)(b) was handcuffed afterwards, though by which officer, PO Kamna could not recall. § 87(2)(b) was calm, compliant, and not combative. Neither PO Kamna nor § 87(2)(b) used profanity when speaking with each other. PO Kamna never called § 87(2)(b) a “nigger” nor did he say “get the fuck out of the car.” He could not recall if PO Allen ever searched the vehicle, or entered the vehicle to retrieve the knife. He did not see the knife himself, explaining that this was PO Allen's arrest.

PO Kamna did not interact with § 87(2)(b) nor did he recall which officer interacted with her at the scene. PO Kamna did not recall seeing any officer search § 87(2)(b) and denied ever searching § 87(2)(b) himself. He could not recall anything else being inside § 87(2)(b)'s vehicle, and did not remember § 87(2)(b) saying anything about having alcohol inside the vehicle. PO Kamna did not know if § 87(2)(b)'s vehicle was brought to the stationhouse or if it had been searched at the stationhouse.

Subject Officer: PO JOSEPH MCEVOY

- PO McEvoy was § 87(2)(b) old at the time of the incident. He is a white man, who is 6' tall, weighs 165 pounds, and has brown hair and blue eyes.
- On July 16, 2013, PO McEvoy worked between the hours of 2 p.m. and 10:35 p.m. on the 73rd Precinct's anti-crime unit. He worked with PO George Allen and PO Andrew Kamna, in plain clothes, and in unmarked vehicle #§ 87(2)(b).

Memo Book

PO McEvoy does not have any entries in his memo book pertaining to the incident (enc. G-1 – G-2).

CCRB Statement

PO Joseph McEvoy was interviewed at the CCRB on October 10, 2013 (enc. G-3 – G-4).

§ 87(2)(g)

On July 16, 2013, at around 7:35 p.m., at § 87(2)(b) between § 87(2)(b) and § 87(2)(b) PO McEvoy stopped a vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. PO McEvoy could not recall during his interview why the car stop was conducted.

PO Kamna was driving that day, PO Allen was sitting in the front passenger seat, and PO McEvoy sitting in the rear passenger seat. All three officers exited the vehicle at the same time and approached § 87(2)(b)'s vehicle. PO McEvoy stood at the back center of § 87(2)(b)'s vehicle but could not recall which side of the vehicle PO Kamna and PO Allen went to. PO McEvoy never interacted directly with either § 87(2)(b) or § 87(2)(b). The only civilians he did speak to were bystanders who inquired about the situation. He also did not hear any of the interaction between the civilians and PO Kamna and PO Allen. PO McEvoy did not hear either PO Kamna or PO Allen call § 87(2)(b) a “nigger” or say “get the fuck out of the car” to him.

PO McEvoy could not recall much of the incident during his interview. Both § 87(2)(b) and § 87(2)(b) exited the vehicle however PO McEvoy could not recall when. At some point during the incident, PO Allen determined § 87(2)(b) to be under arrest, and conferred to PO McEvoy sometime later on that it was due to a knife being in plain view. PO McEvoy never saw the knife, nor did he recall if it was taken out of the vehicle at the scene. He could not recall if either PO Kamna or PO Allen searched the § 87(2)(b)'s vehicle at the scene, neither could he recall if either PO Kamna or PO Allen search § 87(2)(b).

PO McEvoy drove § 87(2)(b)'s vehicle to the stationhouse, and stated that there was nothing irregular about the interior vehicle condition. The car's legal paperwork was verified at the stationhouse, but not searched. It was then parked outside of the stationhouse, and released to § 87(2)(b). PO McEvoy was not aware of vehicular property being damaged, nor did he hear either § 87(2)(b) or § 87(2)(b) complain of such. He commented that § 87(2)(b) and § 87(2)(b) were compliant during the incident, and neither of them ever raised their voices or cursed during the incident.

Witness Officer: SGT. JAMES GRILLO

- *Sgt. Grillo was § 87(2)(b) old at the time of the incident. He is a white man who is 6'0", weighs 205 pounds, and has brown hair and brown eyes.*
- *On July 16, 2013, Sgt. Grillo worked between the hours of 2 p.m. and 10:44 p.m. as the Anti-Crime supervisor. He was in plainclothes, driving in unmarked vehicle 277, and working with PO Brian Cullen and PO Michael Shreve.*

Memo Book

Sgt. Grillo's memo book entries pertaining to this incident (enc. H-1 – H-2) state verbatim that “at 7:48 p.m., verify arrest for PO Allen for § 87(2)(b) at § 87(2)(b) and § 87(2)(b).

CCRB Statement

Sgt. James Grillo was interviewed at the CCRB on October 3, 2013 (enc. H-3 – H-5).

On July 16, 2013, at around 7:35 p.m., Sgt. Grillo went to verify § 87(2)(b)'s arrest at § 87(2)(b) between § 87(2)(b) and § 87(2)(b). He could not

independently recall this incident. Sgt. Grillo also stated that usually during arrest verification, he does not have any interaction with the civilians.

NYPD Documents

73rd Precinct Command Log

PO George Allen recorded § 87(2)(b) arrest in the command log at 8:18 p.m. (enc. I-6). He stated that § 87(2)(b) was being arrested for § 87(2)(a) 160.50 and no personal property was removed.

Property Vouchers

A photograph, a brown dagger, and a grey knife were vouchered for § 87(2)(b)'s arrest (enc. I-4 – I-5).

Arrest for Incident and Disposition

- On October 3, 2013, § 87(2)(b) called the investigator and stated that his criminal charges related to this incident have been dismissed.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Other Evidence

The Huffington Post reported on May 20, 2011, that “nutcrackers” are potent drinks composed of hard liquor and sweet juices, the sale of which is illegal (enc. I-7).

Status of Civil Proceedings

- As of November 27, 2013, neither § 87(2)(b) nor § 87(2)(b) filed a Notice of Claim with the City of New York regarding this incident (enc. M-1), which is one month past the 90-day filing deadline.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- § 87(2)(b) has filed the following CCRB complaints (enc. A-4):

- § 87(2)(b)

Subject Officers CCRB History

- PO Andrew Kamna has been a member of the service for seven years and there is one substantiated CCRB allegation against him (enc. A-1):
 - Case no. 201100274, regarding a stop allegation, the Board recommended Charges, and the NYPD imposed Instructions.
- PO George Allen has been a member of the service for six years and there is one substantiated CCRB allegation against him (enc. A-2):

- Case no. 201209362, regarding a question allegation, the Board recommended Charges, and the NYPD has yet to prosecute.
- PO Joseph McEvoy has been a member of the service for six years and there is one substantiated CCRB allegation against him (enc. A-3):
 - Case no. 201206499, regarding a vehicle search allegation, the Board recommended Charges, and the NYPD has yet to prosecute.

Conclusion

Identification of Subject Officers

PO Kamna, PO Allen, and PO McEvoy confirmed their interaction with § 87(2)(b) and § 87(2)(b).

PO McEvoy admitted to driving § 87(2)(b)'s vehicle back to the stationhouse, and PO Allen admitted to searching it at the stationhouse. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

PO Allen, the arresting officer for this incident, stated in § 87(2)(b)'s arrest report that § 87(2)(b)'s car was stopped for failing to signal on a left turn. § 87(2)(g)

§ 87(2)(b) was never summonsed for the traffic violation. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Concerning the search of § 87(2)(b)'s person, immediately upon approaching the vehicle, PO Allen observed a weapon in plain view and deemed § 87(2)(b) to be under arrest. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Discourtesy – PO Andrew Kamna spoke rudely to § 87(2)(b)

Allegation B: Offensive Language – PO Andrew Kamna made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that PO Kamna said various derivations of the word “fuck” and called him “nigger.”

§ 87(2)(b) corroborated the allegation stating that although she could not remember at what point during the incident it was said, she did hear PO Kamna call § 87(2)(b) “nigger” and say “get the fuck out of the car.”

PO Kamna denied ever using any profanity in his interaction with § 87(2)(b). He also specifically denied ever calling § 87(2)(b) “nigger” or telling him “get the fuck out of the car.” PO Allen and PO McEvoy all denied ever hearing PO Kamna use profanity during the incident as well.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C: Abuse of Authority – PO Andrew Kamna searched the car in which

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation D: Abuse of Authority – PO George Allen searched the car in which

§ 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) and § 87(2)(b) alleged that PO Kamna and PO Allen both searched § 87(2)(b)'s vehicle without justification.

PO Allen stated that he never searched the car besides for entering the rear of the vehicle where the cooler of nutcrackers was, to take a photo of the nutcrackers for property voucher purposes. PO Kamna stated that he never observed PO Allen search the § 87(2)(b)'s vehicle. PO McEvoy stated that he could not recall either PO Kamna or PO Allen ever searching the vehicle at the scene.

When there is probable cause to arrest a defendant, and “where the police have reason to believe that a car may contain further evidence relating to a crime,” officers are permitted to search the vehicle. People v. Wright 954 N.Y.S.2d 761 (2012) (enc. AB-1 – AB-6).

§ 87(2)(g)

Allegation E: Abuse of Authority – Officers damaged § 87(2)(b)'s property.

§ 87(2)(b) and § 87(2)(b) alleged that officers damaged § 87(2)(b)'s vehicle, and the property inside the vehicle, when the car was taken to the precinct stationhouse.

Neither § 87(2)(b) nor § 87(2)(b) witnessed the search of the vehicle from which the property was allegedly damaged. § 87(2)(b) also specified that the vehicles searches performed at the scene of the incident did not result in any property damage.

PO McEvoy drove § 87(2)(b)'s vehicle to the stationhouse, but stated that it was not searched before being released to § 87(2)(b). PO Kamna could not recall what happened to § 87(2)(b)'s vehicle after the incident concluded. PO Allen stated that at the stationhouse, he searched § 87(2)(b)'s vehicle after it was vouchered. He looked under and around all the seats, but never took the seats out or used any tools. PO Allen also stated that he never damaged any property as a result of the search. All three officers denied knowing about § 87(2)(b)'s property being damaged at the precinct stationhouse.

The pictures that § 87(2)(b) and § 87(2)(b) provided do depict a ripped American flag, but they reveal no damage to the vehicle itself. § 87(2)(b) did not provide any other evidence of damage to his property.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

Investigator: _____ Yanjiao Chen _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date